

CONSENT ORDER

This order is made by the investigation committee upon the respondent's acceptance of a proposal by the committee under section 73(1) of the *Professional Governance Act*.

Between

Association of BC Forest Professionals

("ABCFP")

And

ANTHONY NICKEL

("NICKEL")

Background

1. NICKEL was licensed as a Registered Forest Technologist ("RFT") from February 2015 to November 2024, and a licensed timber scaler since June 2019.
1. From November 2018 to late 2021, NICKEL was employed as a scaling supervisor for a major licensee in Northeastern BC.
2. On June 17, 2022, the ABCFP received a Notice of Complaint (the "Complaint") against NICKEL.
3. On October 24, 2022, the ABCFP Investigation Committee authorized an investigation into the matter of NICKEL's conduct and practice.
4. The investigation found that NICKEL gave directions to scalers that were not consistent with the scaling manual.

5. The investigation found that NICKEL spoke to a scaler repeatedly about the need to find more grading deductions, and the cost implications if the deductions were not found. The scaler could have reasonably interpreted this as pressure to downgrade regardless of what he observed.
6. The investigation found that NICKEL directed scalers to scale "tighter", and that a reasonable interpretation for the scalers to take from the Respondent's directions was that he wanted them to scale "smaller".
7. Following the investigation, the investigator panel issued an investigation report for the Investigation Committee's review and consideration, and NICKEL was given an opportunity to respond to it.
8. On October 28, 2024, the ABCFP Investigation Committee reviewed the investigation report, and NICKEL's response, and directed the negotiation of a consent order in accordance with ABCFP Bylaw 12-13(6)(d)

Admissions

9. NICKEL admits, under section 73(3)(b) of the *Professional Governance Act*, that:
 - (a) In providing direction on scaling, grading, and waste surveying, he failed to ensure his communications to scalers were objective and independent, thereby contravening ABCFP Bylaw 9 standard 2(a).
 - (b) He provided directions to scalers that were inconsistent with the scaling manual, thereby contravening ABCFP Bylaw 9, Standard 4(d).

Disposition

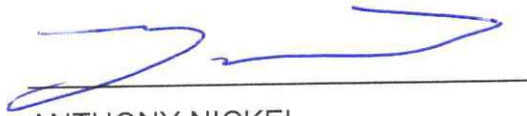
10. NICKEL consents to the Investigation Committee making the following orders:
 - (a) That NICKEL is reprimanded under section 75(6)(a) of the *Professional Governance Act*;

- (b) That NICKEL must complete the ABCFP Code of Ethical and Professional Conduct e-course by May 31, 2025; and
 - (c) That NICKEL must complete the ABCFP Assessing Your Interpersonal and Communication skills e-course by May 31, 2025; and
 - (d) That NICKEL must pay a penalty of \$1000 to the ABCFP under section 75(6)(b) of the *Professional Governance Act* by May 31, 2025
11. NICKEL acknowledges that this consent order has the same effect as an order made by a panel of the Discipline Committee of the ABCFP after a hearing under section 75 of the *Professional Governance Act*.
12. NICKEL acknowledges that the ABCFP is required under ABCFP Bylaw 13-7 to notify the public of this consent order by publishing a discipline digest on the ABCFP's website and in its newsletter, or other public communications that will contain a summary of the circumstances of this case, including the full text or summary of this order.
13. NICKEL acknowledges that he has read this consent order, fully understands its terms, and has voluntarily accepted it for the purpose of fully and finally resolving all matters arising out of or related to the Complaint.
14. NICKEL understands that he has the right to seek independent legal advice and has been encouraged to seek such advice before signing this consent order.

This consent order has been proposed by the Investigation Committee and is accepted by NICKEL effective this 23 day of April 2025.



Bruce Blackwell, RPF
Chair, Investigation Committee

A stylized handwritten signature in blue ink, consisting of a series of loops and a long horizontal stroke.

ANTHONY NICKEL

A handwritten signature in blue ink, featuring a large, stylized 'K' followed by the name 'Kevin Dancourt' in a cursive script.

Name and Signature of Witness